

# PERPETUAL LEASE

THIS INDENTURE made the 4th  
day of November 1971

between the President of India (hereinafter called the Lessor) of the one  
part, and Pt. Rameshwar Prasad Dhasmana S/o Pt. Lila Nand,  
Gali Lehsan, Chandni Chowk, Delhi.

\*Pt. Vidya Datt  
Dhasmana &  
Pt. Jogeshwar  
Prasad  
Dhasmana

(hereinafter called the Lessee) of the other part.

WHEREAS under the instructions of the Government of India relating to the disposal of building sites in the New Capital of Delhi, the Chief Commissioner of Delhi has agreed on behalf of the Lessor to demise the plot of nazul land hereinafter described to the Lessee in the manner hereinafter appearing.

NOW THIS INDENTURE WITNESSETH that in consideration of the premium of Rs. 10500/- (Rupees ten thousand and five hundred only)

paid before the execution of these presents (the receipt whereof the Lessor hereby acknowledges) and of the rent hereinafter reserved and of the covenants on the part of the Lessee hereinafter contained, the Lessor doth hereby demise unto the Lessee ALL THAT plot of land containing by admeasurement 375 Sq. Yds. or thereabouts situated at Plot No. 58-A in Block No. 172 \* in the site acquired for the erection of the New Capital of Delhi which said plot of land is more particularly described in the schedule hereunder written and with the boundaries thereof has for greater clearness been delineated on the plan annexed to these presents and thereon coloured red TOGETHER with all rights, easements and appurtenances whatsoever to the said plot of land belonging or appertaining TO HOLD the premises hereby demised unto the Lessee in perpetuity from the Twenty-ninth day of February 1952

\*Jorbagh, New Delhi. The site falls within NDMC LIMITS

YIELDING AND PAYING thereof the yearly rent payable in advance of Rs. 262-50 (Rupees two hundred sixty two and paise fifty only)

or such other sum as may hereafter be assessed under the covenants and conditions hereinafter contained clear of all deductions, by equal half-yearly payments on the fifteenth day of January and fifteenth day of July, in each year at the Imperial Bank of India, New Delhi, or at such other place as may be notified by the Chief Commissioner of Delhi for this purpose, from time to time, the first of such payments to be made on the fifteenth day of July 1952.

Subject always to the exceptions, reservations, conditions and covenants hereinafter contained, that is to say as follows:—

1. The Lessor excepts and reserves unto himself all mines, minerals, coals, gold-washing, earth oils and quarries in or under the said land, and



full right and power at all times to do all acts and things which may be necessary or expedient for the purpose of searching for, working, obtaining, removing and enjoying the same without providing or leaving any vertical support for the surface of the said land or for any building for the time being standing thereon provided always that the Lessor shall make reasonable compensation to the Lessee for all damage directly occasioned by the exercise of the rights hereby reserved or any of them.

2. The Lessee for himself, his heirs, executors, administrators and assigns covenants with the Lessor in manner following (that is to say)—

- (1) The Lessee will pay unto the Lessor the yearly rent hereby reserved on the days and in the manner hereinbefore appointed.
- (2) The Lessee will from time to time and at all times pay and discharge all rates, taxes, charges and assessments of every description which are now or may at any time hereafter during the continuation of this Lease be assessed, charged, or imposed upon the premises hereby demised or on any buildings to be erected thereupon or on the Landlord or Tenant in respect thereof.
- (3) All arrears of rent and other payments due in respect of the premises hereby demised shall be recoverable in the same manner as arrears of land revenue under the provisions of the Punjab Land Revenue Act, XVII of 1887, and any amending Act for the time being in force.
- (4) The Lessee will in all respects comply with and be bound by the building, drainage and other bye-laws for the time being in force in the New Capital of Delhi.
- (5) The Lessee will not without the previous consent in writing of the Chief Commissioner of Delhi or of such officer or body as the Lessor or the Chief Commissioner of Delhi may authorise in this behalf make any alterations in or additions to the buildings erected on the said demised premises so as to affect any of the architectural or structural features thereof or erect or suffer to be erected on any part of the said demised premises any buildings other than and except the buildings erected thereon at the date of these presents.
- (6) The Lessee shall not without the written consent of the Chief Commissioner construct any well of any description, or instal any private system of supplying water whether for irrigation or for drinking.
- (7) The Lessee will not without such consent as aforesaid carry on or permit to be carried on the said premises any trade or business whatsoever or use the same or permit the same to be used for any purpose other than that of a double storey residential building consisting of a single or two residential flats in all or do or suffer to be done thereon any act or thing whatsoever which in the opinion of the Chief Commissioner of Delhi may be an annoyance or disturbance to the President of India or his tenants in the New Capital of Delhi.

with a barsati on the 2nd storey



- (8) Any servant's quarters constructed by the Lessee shall not without the written permission of the Chief Commissioner of Delhi be occupied or permitted to be occupied otherwise than by the *bond fide* servants of persons occupying the main building.
- (9) The Lessee will not without the written consent of the Chief Commissioner of Delhi or duly authorised officer or body as aforesaid make any excavations in the premises hereby demised and will at all times during the continuance of this Lease maintain the premises and all buildings thereon in a sanitary condition to the satisfaction of the said Chief Commissioner of Delhi, or duly authorised officer or body as aforesaid.
- (10) The Lessee will at all times during the continuance of this Lease keep the buildings to be erected on the said land in a good and substantial state of repair to the satisfaction of the said Chief Commissioner of Delhi or duly authorised officer or body as aforesaid.
- (11) The Lessee will at all reasonable times grant access to the demised premises to the said Chief Commissioner of Delhi or duly authorised officer or body as aforesaid or to the sanitary staff appointed for the purpose of maintaining premises in the New Capital of Delhi in a sanitary condition and will comply with such sanitary rules and regulations as may be prescribed

11(A) That all persons acting under the orders of the Lessor shall be at liberty at all reasonable time in the day time during the terms of the Lease to enter upon the said land or any building that may be erected thereon to satisfy themselves that the covenants of the lease are being honoured by him in all respects whatsoever and/or for any other purpose connected with the lease.

already paid and current market value) in the value of land at the time of transfer (whether such transfer is an entire site or only a part thereof), the amount to be recovered being 50 per cent. of the unearned increase.

The Lessor shall have a pre-emptive right to purchase the property after deducting 50 per cent. of the unearned increase as aforesaid.

3. If there shall at any time have been in the opinion of the Lessor or the Chief Commissioner of Delhi whose decision shall be final, any breach by the Lessee or by any person claiming through or under him of any of the covenants or conditions contained in sub-clauses (3), (9) and (10) of Clause 2 and if the said intended Lessee shall neglect or fail to remedy any such breach

*Handwritten signature*  
*Handwritten signature*  
*Handwritten signature*  
 / erected on

*Handwritten signature*  
*Handwritten signature*  
*Handwritten signature*  
*Handwritten signature*

*Handwritten signature*  
*Handwritten signature*  
*Handwritten signature*  
*Handwritten signature*



to the satisfaction of the Chief Commissioner of Delhi within seven days from the receipt of a notice signed by the Chief Commissioner of Delhi requiring him to remedy such breach it shall be lawful for the officers and workmen acting under the authority and direction of the Chief Commissioner of Delhi to enter upon the premises hereby demised, and (a) to remove or demolish any alterations in or additions to the buildings erected on the said premises, (b) to remove or demolish any buildings erected on the said premises without the previous consent in writing of the Chief Commissioner of Delhi or duly authorised officer as aforesaid, (c) to fill any excavation or carry out any repairs that may be necessary and all such moneys and expenses as may be laid out and incurred by the Chief Commissioner of Delhi or by his order shall be paid by the said Lessee; and it is hereby expressly declared that the liberty hereinbefore given is not to prejudice in any way the power given to the President of India by Clauses 4 and 5 hereof.

4. If the yearly rent hereby reserved or any part thereof shall at any time be in arrear and unpaid for one calendar month next after any of the said days whereon the same shall have become due, whether the same shall have been demanded or not, or if there shall have been in the opinion of the Lessor or the Chief Commissioner of Delhi whose decision shall be final, any breach by the Lessee or by any person claiming through or under him of any of the covenants or conditions hereinbefore contained and on his part to be observed or performed then and in any such case it shall be lawful for the Lessor or any person or persons duly authorised by him notwithstanding the waiver of any previous cause or right of re-entry upon any part of the premises hereby demised or of the buildings thereon in the name of the whole to re-enter and thereupon this demise and everything herein contained shall cease and determine and the Lessee shall not be entitled to any compensation whatsoever, nor to the return of any premium paid by him.

5. No forfeiture or re-entry shall be effected except as herein provided, without the permission of the Chief Commissioner of Delhi and the Chief Commissioner shall not permit such forfeiture or re-entry until the Lessor has served on the Lessee a notice in writing—

- (a) specifying the particular breach complained of,
- (b) if the breach is capable of remedy, requiring the Lessee to remedy the breach,

and the Lessee fails within a reasonable time from the date of service of the notice to remedy the breach, if it is capable of remedy; and in the event of forfeiture or re-entry the Chief Commissioner may in his discretion relieve against forfeiture on such terms and conditions as he thinks proper.

Nothing in this clause shall apply to entry for breach of covenant against unauthorised sub-division.

6. The rent hereby reserved may at the option of the Lessor be enhanced on or after the first day of January 1982 and thereafter at the end of each successive period of not less than thirty years provided that the increase in the rent fixed at each enhancement shall not at each such time exceed one half of the increase in the letting value of the site without buildings at the date on which the enhancement is made and such letting value shall be assessed by the Collector or Deputy Commissioner of Delhi. PROVIDED

*Handwritten notes:*  
 21-11-71  
 21-11-71



always that any such assessment of letting value for the purpose of this provision shall be subject to the same right on the part of the Lessee of appeal from the orders of the said Collector or Deputy Commissioner and within such time as if the same were an assessment by a Revenue Officer within the meaning of Section 50 of the Punjab Land Revenue Act, 1887 (Act XVII of 1887), and the proceedings for or in relation to any such appeal shall be in all respects governed by the provisions of the said Act in the same manner as if the same had been taken thereunder.

7. The expressions the Lessor and the Lessee hereinbefore used shall where the context so admits include in the case of the Lessor his successors and assigns and in the case of the Lessee, his heirs, executors, administrators or representatives and other the person or persons in whom the leasehold interest hereby created shall for the time being be vested by assignment or otherwise.

IN WITNESS WHEREOF the parties hereto have set their hands the day and year first above-written.

**THE SCHEDULE ABOVE REFERRED TO:**

Bounded on the North by Service Road,

Bounded on the South by Main Road,

Bounded on the East by Plot No.58, Block No.172,

Bounded on the West by Plot No.59, Block No.172.

Signed by S/Sh. Rameshwar Prasad Dhasmana

Vidya Datt Dhasmana and Jageshwar  
Prasad Dhasmana.

in the presence of:—

(1) Mishra  
(V.V. Sharma)  
C-175 Kidwai Nagar, New Delhi

(2) Hari Krishan Sharma

Signed by Sh. C. J. Motwani, Assitt. Settlement  
Commissioner, for & on behalf of  
Secretary (Local Self Government) to the Chief  
Commissioner of Delhi by the order and direction of  
the President of India in the presence of

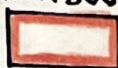
(1) \_\_\_\_\_

Superintendent,  
Land & Development Office  
New Delhi,

RESIDENTIAL  
REVISED (2)

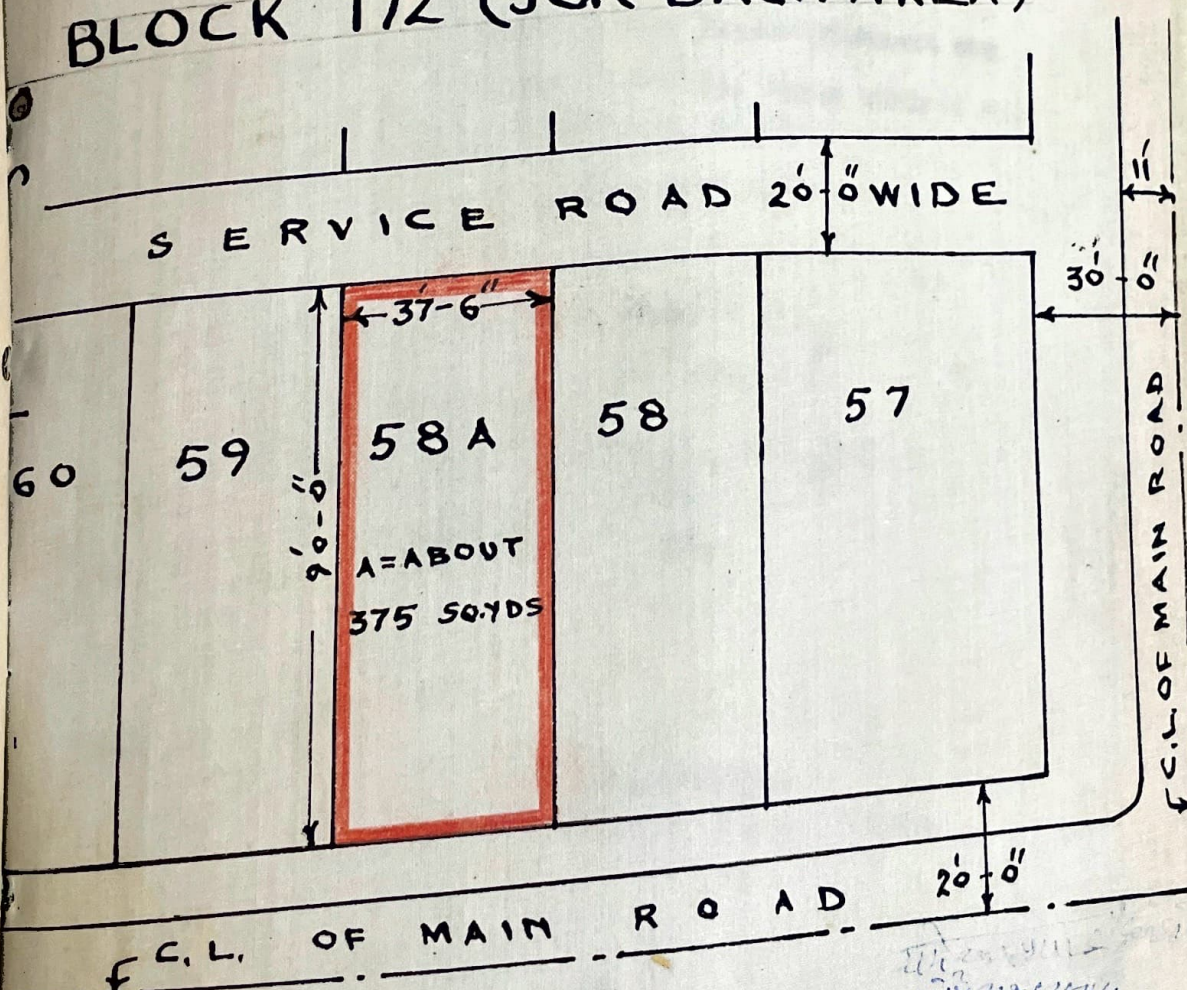


PLAN OF LAND LEASED TO.  
 PANDIT RAMESHWAR PRASAD DHASMANA.  
 PANDIT VIDYA DATT DHASMANA. AND  
 PANDIT JAGESHWAR PRASAD DHASMANA,  
 GALI LEHSWAN, CHANDNI CHOWK, DELHI.  
 SCALE :- 32 FT = TO AN INCH.

LAND LEASED SHOWN THUS  A= ABOUT  
 375 SQYARD

BLOCK 172 (JOR BAGH AREA)

SERVICE ROAD 20'-0" WIDE



LESSEE

|       |                    |
|-------|--------------------|
| ED BY | S. Sharma 11-10-71 |
| ED BY | 17/10/71           |
| ED BY | 16/11/71           |

WITNESSES

(Mushary  
 C.V. Sharma)  
 C. M. Sharma  
 Hari Krishan Sharma



LAND & DEVELOPMENT OFFICE

Certified that Shri/Smt.

~~xxx~~ **Rameshwar Prasad Dhamane etc**

paid stamped duty of Rs. 300/- (

**Rs. Three hundred and**

**only**

) at the time of Registration of the

Agreement for Lease to which this Perpetual Lease  
pertains.

The Agreement for Lease thus stamped was  
registered as No. 70 in Addl. Book

187 Volume No. 187 on pages 36 to 43

14th day of January 1953

(**R.D. Mathur**)

**for Land & Development Officer.**